

The Constitution of the Naturist Café Community

As signed and adopted by the founders on 12 JUNE 2025

Founder 1

Name: Bomeleni Linah Mahlomuza

Signature:



Founder 2

Name: JENERAL VONGANI YINGUANI NKUNA

Signature:



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Preamble

We, the naturists of the Naturist Café Community, affirm our choice and right to enjoy the culture of naturism in terms of sections 30 and 31 of the Constitution of the Republic of South Africa;

our culture is based on going naked in order to delight in the wellness that comes with being in one's natural state, socially or individually, outdoors or indoors, without shame or fear;

we espouse values of respect for others and their bodies, respect for ourselves, non-judgmentalism, non-discrimination, non-racialism, non-sexualism, family-friendliness, peace, safety, and respect for nature;

various customs of nude artistic expression, nude vocations, nude exercise, nude recreation, nude demonstration, nude protest, and nude religious worship are practiced;

we acknowledge that the culture of naturism stems back a number of centuries and is today a global cultural movement;

anyone alive can adopt naturism; and

our community's cultural ambition is to live out our naturist customs peacefully and amicably, as much and as easily as possible, wherever we find ourselves.

Part 1: Interpretation, Formation, and First Board of Directors

1. Sections, Subsections, and Paragraphs

- (1) In this constitution, unless clearly specified—
- (a) an Arabic numeral appearing on the left-hand side of any page in bold, non-italic text and positioned adjacent to a full stop, to the left of such punctuation mark, denotes a section of this constitution;
 - (b) an Arabic numeral appearing inside parentheses and in non-bold, non-italic text denotes a subsection of a section of this constitution;
 - (c) a lowercase letter of the alphabet appearing inside parentheses and in non-bold, non-italic text denotes a paragraph of a subsection of a section of this constitution;
 - (d) a lowercase Roman numeral appearing inside parentheses and in non-bold, non-italic text denotes a subparagraph of a paragraph of a subsection of a section of this constitution;
 - (e) “naturist” or “naturism” also refers to “nudist” or “nudism”, respectively; and
 - (f) reference to the singular also refers to the plural and the possessive forms.

2. Definitions

- (1) In this constitution, unless the context indicates otherwise—
- “Act No. 19 of 2002” means the Commission for the Promotion and Protection of the Rights of Cultural, Religious and Linguistic Communities Act, 2002;
- “Commission” means the Commission for the Promotion and Protection of the Rights of Cultural, Religious and Linguistic Communities, in South Africa;
- “naturist contractor” means an adult natural person who—
- (a) at an occasion or event organised by the Community, offers their services, for remuneration, to the functions and activities of the Community while going naked as a naturist; and
 - (b) is content to appear naked as a naturist in public social media, broadcast media, or publications, in the context of practicing or discussing the culture of naturism;
- “The Community” or “the Community” means the Naturist Café Community, a national community of naturists organised as an official

cultural association formed in the republic of South Africa in terms of section 36 of the Commission for the Promotion and Protection of the Rights of Cultural, Religious and Linguistic Communities Act, 2002;

3. Formation and Adoption

- (1) The Community was conceived following a consultative meeting, on the 13th of May 2025, attended by Lina^Bh Mahlomuza, Vongani Nkuna, and representatives of the Commission^{J.V.Y};
- (2) The founding members of the Community are Lina Mahlomuza and Vongani Nkuna, both of whom are seasoned promoters of naturism, and hereinafter referred to as the "founders".
- (3) This constitution must first be adopted by the founders before the appointment of any new members of the Community;
- (4) Adoption of this constitution by the founders shall, immediately, render—
 - (a) the Community officially constituted, formed, and organised as an official cultural association in the Republic of South Africa;
 - (b) this constitution valid and in force; and
 - (c) the founders as the first active members of the Community despite any other requirements for initial active membership as stated in this constitution.

4. Founders' First Duties

- (1) After forming and constituting the Community as an official cultural association, the founders must—
 - (a) establish the first address from which the Community will operate;
 - (b) launch a website for the Community, the cost of which shall be deemed the first year's annual membership subscription fee payable, to the Community, by the founders;
 - (c) invite and appoint all the new members who will serve in the first board of directors ("board") of the Community;
 - (d) satisfy themselves that the board members, as stated in paragraph (c) of this subsection, are content to be naturist contractors; and
 - (e) use any methods or procedures, they deem fit, to fulfil the provisions as stated in this subsection.
- (2) The founders may appoint themselves among those members who will serve in the first board.

- (3) The undertaking as stated in subsections (1) and (2) of this section, is the only time in which the founders can, at their own prerogative and without the participation of any other members, invite and appoint members to serve in the board of the Community.
- (4) The members of the first board must all be appointed on the same day and date, on which, other than the founders, they shall immediately be rendered as active members of the Community and must pay their first year's annual membership subscription fees on the day the bank account of the Community is established.
- (5) Such appointments as stated in subsection (4) of this section must be completed within 60 days of the adoption of this constitution.
- (6) The first board shall—
 - (a) be comprised of no more than five members, all of whom must be nativist contractors;
 - (b) provide for the roles of chairperson, secretary, and treasurer which must be filled, respectively, by three different members of the board;
 - (c) provide for two additional roles in the board which, based on the objectives of the Community, shall be determined by the board and filled, respectively, by the two additional members who are not appointed to the roles specified in paragraph (b) of this subsection;
 - (d) form, in whole or in part, the members of the community council in terms of sections 36 to 38 of Act No. 19 of 2002;
 - (e) recruit, as the need arises, some of its active members to the community council in terms of sections 36 to 38 of Act No. 19 of 2002; and
 - (f) serve for three years from the date as stated in subsection 4 of this section.

Part 2: Mandate and Objectives

5. Mandate

- (1) The purpose of the Community is to—
 - (a) initiate and establish a national nativist community council that will be recognised by the Commission in terms of section 37 of Act No. 19 of 2002;
 - (b) carry out the preservation, promotion, and development of the culture of nativism; and

- (c) advise and assist the Commission in terms of section 38 (1) (b) of Act No. 19 of 2002.

6. Objectives

- (1) The Community shall achieve its mandate, as specified in section 5 of this constitution, by—
 - (a) working with the Commission and/or other stakeholders for the establishment, in each South African municipality, of extensive public nativist parks, reserves, roads, spaces, and beaches (where applicable) wherein various nativist customs can be practiced;
 - (b) maintaining a public register of public places, spaces, and events, where nativism is or has been practiced, with the intention of swift protection of those places, spaces, and events as sanctuaries where nativists can exercise their cultural life in terms of sections 30 and 31 of the Constitution of the Republic of South Africa;
 - (c) funding the scientific study and research of nativism and nudity, a discipline which we call gymnology (from the Greek “gymnos” meaning naked, and the suffix “ology” meaning the study of something);
 - (d) hosting monthly nativism markets in a manner that—
 - (i) showcases, informs, and educates, practically, on the culture of nativism;
 - (ii) allows for nativists and members of the general public to practice nativism as much as possible;
 - (iii) allows for the attendance of members of the general public irrespective of whether they are nativists or not (a practice also known as coexistence);
 - (iv) safeguards those who choose to practice nativism;
 - (v) permits the presence and work of media and entertainment organisations other than those involved in the production of pornography;
 - (vi) permits businesses from the food, beverage, health, wellness, and personal care industries, other than those in the sexual products and services industries, to conduct their business and trade for free;
 - (vii) remunerates the nativist contractors who offer their services to the functions and activities of the markets; and

- (viii) generates funds for the long-term continuance of the public benefit objectives of the Community;
 - (e) aiming to host, within the same month, as many of the markets, as stated in paragraph (d) of this subsection, in as many places as possible, nationwide.
- (2) Subject to subsection (1) (d) of this section, the Community may organise, arrange, and structure a market at any venue or space and for any length of time as it deems fit.

Part 3: Memberships, Committees, and Code of Conduct

7. Eligible Members and Benefits

- (1) Any adult natural person who resides in South Africa can be a member of the Community, provided that—
 - (a) the person, other than in the bedroom and bathroom, occasionally practices going naked, nonsexually;
 - (b) despite the condition as stated in paragraph (a) of this subsection, naturism makes good sense to the person; and
 - (c) the person commits to uphold the naturism code of conduct as set out in section 10 of this constitution.
- (2) Active members gain—
 - (a) free, all access, entry to any public occasion and event organised by the Community;
 - (b) discounted members-only pricing on items sold at any public occasion and event organised by the Community; and
 - (c) free access to the members-only news and reviews section of the Community's website.

8. Status of Memberships

- (1) Other than the founders and the first board members, an initial active membership status is officially registered and retained after a prospective member submits a fully completed membership application form, that gets approved, and makes payment, to the bank account of the Community, of the annual membership subscription fee of an amount as determined by the board.
- (2) Active membership status expires and terminates after one year from the payment date of the subscription fee, as stated in subsection (1) of this

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section, after which a member becomes inactive and may renew their annual membership to an active membership status.

- (3) In addition to the condition as stated in subsection (2) of this section, active membership status shall also terminate, effective immediately, for life, and without refund, in the event of a violation of any part of the naturism code of conduct as set out in section 10 of this constitution.
- (4) The Community reserves the right to deny or revoke membership and/or entry to an occasion or event organised by the Community, only for reasons related to a violation of any part of the naturism code of conduct as set out in section 10 of this constitution.

9. Board, Committees, and Administration

- (1) An active member may simultaneously serve as a—
 - (a) board member;
 - (b) member of the community council in terms of sections 36 to 38 of Act No. 19 of 2002;
 - (c) member of a subcommittee of the board; and
 - (d) as a naturist contractor to the Community.
- (2) All members who serve in the structures as stated in subsection (1) of this section must retain an active membership status with the Community and must be naturist contractors.
- (3) The board is entrusted with overseeing and directing the affairs of the Community and must, among other functions—
 - (a) act in the best interests of the Community;
 - (b) appoint the members who will serve in the community council in terms of sections 36 to 38 of Act No. 19 of 2002;
 - (c) appoint members who will serve in any subcommittee of the board;
 - (d) appoint the service providers, including an accountant, who will offer their services to the functions and activities of the Community, giving preference to those service providers who are—
 - (i) active members of the Community; and
 - (ii) content to be naturist contractors;
 - (e) permit Naturist Café, a naturist business that lends its name and its founders to the Community, to conduct its business, for free, at any public occasion and event organised by the Community;
 - (f) determine a policy for—
 - (i) generating funds;
 - (ii) remuneration;

- (iii) procurement;
- (iv) adding, removing, or replacing members of the board and the members of other structures of the Community;
- (v) organisational conflict resolution;
- (vi) the election of a succeeding board and the dissolution of a retiring board;
- (g) allow active members to vote in an election of a succeeding board; and
- (h) must only serve for three years after which a succeeding board must be elected through a vote of active members of the Community.

10. Naturism Code of Conduct

- (1) A person, at any occasion or event organised by the Community, must not—
 - (a) discriminate against anyone on the basis of—
 - (i) race;
 - (ii) religion;
 - (iii) ethnicity;
 - (iv) gender;
 - (v) appearance; and
 - (vi) sexual orientation;
 - (b) engage in—
 - (i) theft;
 - (ii) fraud;
 - (iii) assault;
 - (iv) unruly behaviour;
 - (v) sexual activity; and
 - (vi) the illegal use of drugs or narcotics;
 - (c) without the express consent from the respective person, take, share, or post photographs or videos of an adult person who is naked;
 - (d) for any purposes whatsoever, take photographs or videos of a minor person who is naked; and
 - (e) coerce anyone to go naked.